

The analysis is different for the claim of defamation predicated on “suggestions that Plaintiff Vickers was actively attempting to kill his ex-wife. See Complaint ¶ 9. Plaintiff has made no *prima facie* factual showing sufficient to sustain a favorable judgment as to these statements for either defamation *per se* or *per quod*. See, e.g., CACI 1700-1705.

The same can be said of Defendant’s negligence claim. See Complaint ¶¶ 8, 9, 16, 17. Assuming *arguendo* that Plaintiff has properly alleged a claim of negligence, Plaintiff has made no *prima facie* factual showing sufficient to sustain a favorable judgment against Defendant for negligently making the statements as to Plaintiff raping or attempting to kill his ex-wife. See *Woolard v. Regent Real Estate Services, Inc.* (2024) 107 Cal.App.5th 783, 791 (“The elements of a cause of action for negligence are duty, breach, causation, and damages.”), quoting *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 529; CACI 400. Specifically, there has been no evidentiary showing by Plaintiff that Defendant’s negligence was a substantial factor in causing him harm or any damages related thereto.

Fees

Defendant argues he is entitled to “reasonable fees and costs or, in the alternative, monetary sanctions, under the Anti-SLAPP statute.” Mot. 30:1-3. Not so.

Code of Civil Procedure section 425.16 (c) (1) provides, in relevant part: “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs.” “[The] decisional authority and the plain language of section 425.16, subdivision (c) supports the conclusion that the commonly understood definition of attorney fees ... applies with equal force to section 425.16 and a prevailing defendant is entitled to recover attorney fees *if represented by counsel.*” Witte v. Kaufman (2006) 141 Cal.App.4th 1201, 1208 (italics added), quoting *Ramona Unified School Dist. v. Tsiknas* (2005) 135 Cal.App.4th 510, 524. In any event, it cannot be said that Defendant prevailed. Each side prevailed in part.

Defendant’s motion is granted in part and denied in part as specified.

8. CU0002494 Live Oak Banking Company, vs. Miller Real Estate Investments LLC, et al.

Plaintiff’s application for an order extending time to serve Defendants and granting service of process on secretary of state as to Miller Real Estate Investments LLC, and Joseph A. Miller, DMD, Inc., is granted.

The Secretary of State may be served, rather than the designated agent of a domestic corporation, under any of the following circumstances: (1) if an agent designated for the purpose of service of process has resigned and has not been replaced; (2) if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of process; or (3) if no agent has been designated. Corp. Code § 1702.

Under any of these circumstances, it must be shown by affidavit to the satisfaction of the court that process against the domestic corporation cannot be served with reasonable diligence upon the designated agent by hand, by leaving copies in the office of the person to be served, or by

mail, or on the corporation in the manner provided in Code Civ. Proc. § 416.10(a)-(c) or in Code Civ. Proc. § 415.20(a). Civ. Code § 1702(a).

At bar, Plaintiff's affidavit demonstrates the corporations cannot be served with reasonable diligence in any of the above manners. Cram Decl. ¶¶ 4-12, Exs. A-G. Plaintiff's application is granted as prayed.

9. CU0001544 Caitlin Peters vs. Cara Krpalek, et al.

The October 16, 2025, demurrer by Defendant Jiri Krpalek is removed from calendar. A default had been entered against Defendant as of March 6, 2025, and the instant October 2025 demurrer was filed (improvidently by the Clerk) at the time the default remained in place. An affidavit of unsuccessful service was filed as to the demurrer on October 20, 2025, and there is no proof that the October 2025 motion has been properly served on Plaintiff. On November 7, 2025, the Court, among other things, set aside the default and ordered Defendant to file a responsive pleading. Defendant then filed an answer on November 13, 2025, seemingly asserting summary grounds for a demurrer therein. Again, there is no proof of service demonstrating that the November 2025, answer has been served on Plaintiff.

If Defendant wishes to proceed with a demurrer he must file the same, notice the same for hearing, serve the same and provide proof of service of the same, all prior to March 27, 2026. If no demurrer is properly filed, served and noticed prior thereto, the Court shall conclude that Defendant is waiving his right to demur. Furthermore, Defendant shall serve the answer (if it has not already been served) and provide the Court with proof of service of the same no later than March 27, 2026.

The parties are reminded that they must always ensure that their current address is known to the Court and all parties. Any change of address must be filed and served on all parties.